

9.	26CV0672	EVAN SPROAT ET AL VS. VICTOR DOMINGUEZ ET AL
GOOD FAITH SETTLEMENT		

Defendants, Roofchecks.com and Alex Tsivirinko (collectively “Defendants”), have agreed to pay \$25,000 in settlement of claims brought by Plaintiffs, Evan Sproat and Emily Ellis. Defendants now move for a determination of good faith settlement under Code of Civil Procedure Section 877.6. According to the proof of service, all parties were served electronically and by certified mail on July 22, 2026. The motion is not opposed.

Any party to an action in which it is alleged that two or more parties are joint tortfeasors is entitled to a court hearing on the issue of the good faith of a settlement between the plaintiff and one or more of the alleged tortfeasors. Cal. Civ. Pro. § 877.6(a)(1). A determination by the court that the settlement was made in good faith bars any other joint tortfeasor from bringing any further claims against the settling tortfeasor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. Cal. Civ. Pro. § 877.6(c).

In *Tech-Built v. Woodward-Clyde & Associates*, the California Supreme Court addressed the good faith requirement for settlements under Section 877.6. The policies underlying the requirement, “...require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants.” *Tech-Built v. Woodward-Clyde & Associates*, 38 Cal.3d 448, 499 (1985).

However, as noted in *City of Grand Terrace v. Superior Court*, the overwhelming majority of applications for a good faith determination are unopposed and a full factual response to all of the *Tech-Built* factors would be a waste of valuable time and resources. So, when no one objects, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” *City of Grand Terrace v. Superior Court*, 192 Cal.App.3d 1251, 1261 (1987).

In the present case, the Court has reviewed the application of Defendants and determined that it sets forth the basic statutory elements as required. As such, the motion for determination of good faith settlement is granted.

TENTATIVE RULING #9:

THE MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT IS GRANTED.

September 4, 2026
Dept. 9
Civil Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.